

Protection and Communism

Frédéric Bastiat



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PROTECTION and COMMUNISM

From The French

By Frederic Bastiat.

With a Preface, by The Translator

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TRANSLATOR'S PREFACE.

This translation will not, it is hoped, be unacceptable to the English reader, particularly at the present moment, when it is not improbable that, under certain circumstances, a great effort may be made in this country to restore Protection—or, should that wild attempt be considered impossible, to shift the public burdens in such a manner as to effect, as far as possible, the same purpose in favour of what is called the 'agricultural interest.' M. Bastiat's spirited little work is in the form of a letter, addressed to M. Thiers—the archenemy of free-trade, as he was of most propositions which had for their object the true happiness of France. The present was only one of a series of efforts made by M. Bastiat in favour of the cause of freedom of commerce; and the English reader has already had an opportunity of admiring the force of his arguments and the clearness of his style, in Mr. Porter's* admirable translation of *Popular Fallacies*, which is, indeed, a perfect armory of arguments for those 'who, although they may have a general impression favourable to Free-trade, have yet some fears as to the consequences that may follow its adoption.' What impression M. Bastiat may have produced on the public mind of France it is not easy to conjecture, or how far the recent violent changes in that country, presuming them to be at all permanent, may prove favourable to Free-trade or otherwise. But it is to be feared that there is an amount of prejudice and ignorance in France, among the mass of her people, more inveterate and more difficult to remove and enlighten than was the case in this country. However, seed thus sown cannot remain altogether without fruit, and the rapidity with which correct principles spread through a great community, under apparently most unfavourable circumstances, is such as frequently to astonish even those most convinced of the vast power of truth.

* *Secretary of the Board of Trade, and author of the Progress of the Nation.*

The real object of M. Bastiat is to expose the unsoundness and injustice of the system of Protection. He does this partly by a dexterous reference to the theory of Communism, and shows, with logical force and neat

application, that the principles of the two are in truth the same. The parallel thus drawn, so far from being fanciful or strained, is capable of easy demonstration. But, in drawing it, M. Bastiat rather assumes than proves that Communism is itself wholly indefensible—that its establishment would be destructive of security and property, and, consequently, of society—in a word, that it is another term for robbery.

This is true, and obviously so, of Communism, in its more extravagant form; and it is to this, of course, that M. Bastiat refers. But it cannot be denied that there are many modifications of the principle which embrace more or less truth, and which *appear* to offer a corrective to that excessive competition or pressure of numbers, the evils of which are patent, admitted, and deplored. That the specific remedy proposed is vicious, that it would quickly make matters much worse than they are, that it is, in fact, a fraud and a mockery, does not prevent it from being, and naturally, captivating to many who at present see no other way out of the difficulties and the struggles by which they are surrounded: and who are tempted to embrace it, not only as a relief to their present wants and anxieties, but because it would, in their opinion, entail other consequences, as connected with their social condition, particularly grateful to their feelings. We further admit that such sentiments—not in themselves irrational—founded on a legitimate desire for improvement, and entertained by large and important classes—are entitled to the most respectful consideration.

Whether some considerable melioration in the condition of our labourers and artisans may not by degrees be effected by means of combined labour, or co-operation, and the principle of partnership, is no doubt one of the great questions to be solved by modern society, but it is much too wide a one to be entered upon, however cursorily, in this place. It is understood, however, that one of the most original and powerful thinkers within the domain of statistics is at the present moment engaged on this subject; and, if this be so, we shall no doubt, before long, be in the possession of views of extreme importance and interest.

We have, with deep regret, to add that M. Bastiat died during the autumn of last year, after a long illness, in the south of Italy. By his death, not only France, but the world also, has sustained a loss.

PROTECTION AND COMMUNISM.

TO M. THIERS.

Sir,

Do not be ungrateful to the revolution of February. It may have surprised, perhaps disturbed you, but it has also afforded you, whether as an author, an orator, or a practised statesman, some unexpected triumphs. Amidst these successes, there is one certainly of no usual character. We not long ago read in *La Presse*, 'The Association for the Protection of National Labour (the ancient Mimerel Club)* is about to address a circular to all its correspondents, to announce that a subscription is opened for the purpose of promoting in manufactories the circulation of M. Thiers's book upon Property. The association itself subscribes for 5000 copies.' Would that I had been present when this flattering announcement met your eyes. It should have made them sparkle with joy. We have good reason to say that the ways of Providence are as infallible as they are impenetrable. For if you will bear with me for a moment I will endeavour to prove that Protection, when fully developed, and pushed to its legitimate consequences, becomes Communism. It is sufficiently singular that a champion of Protection should discover that he is a promoter of Communism; but what is more extraordinary and more consoling still, is the fact that we find a powerful association, that was formed for the purpose of propagating theoretically and practically the principles of Communism (in the manner deemed most profitable to its members) now devoting the half of its resources to destroy the evil which it has done with the other half.

** An association, Mr. Porter informs us, composed like that assembling (or that did assemble, for we are not quite sure whether it still exists,) at No. 17, New Bond Street, exclusively of producers, at least of the article sought to be protected, and therefore of persons who believe themselves to be interested in excluding from the home market the productions of others.*

I repeat it,—this is consoling. It assures us of the inevitable triumph of truth, since it shows us the real and first propagators of subversive

doctrines, startled at their success, industriously correcting with the proper antidote the poison they had spread.

This supposes, it is true, the identity of the principles of Communism and of Protection, and perhaps you do not admit this identity, though, to speak the truth, it seems to me impossible that you could have written four hundred pages upon Property without being struck by it. Perhaps you imagine that some efforts made in favour of commercial freedom, or rather of free trade, the impatience of a discussion without results, the ardour of the contest, and the keenness of the struggle, have made me view (what happens too often to all of us) the errors of my adversaries in exaggerated colours. But, beyond question, according to my idea, it requires but little effort to develop the principles you have been advocating into those of Communism. How can it be that our great manufacturers, landed proprietors, rich bankers, able statesmen, have become, without knowing or wishing it, the introducers, the very apostles of Communism in France? And why not, I would ask? There are numerous workmen fully convinced of the *right of labour*, and consequently Communists also without knowing or wishing it, and who would not acknowledge the title. The reason of this is, that amongst all classes interest biases the will, and the will, as Pascal says, is the chief element of our faith. Under another name, many of our working classes, very honest people be it observed, use Communism as they have always used it, namely, on the condition that the wealth of others should alone be liable to the law. But as soon as the principle, extending itself, would apply the same rule to their own property—oh! then Communism is held in detestation, and their former principles are rejected with loathing. To express surprise at this, is simply to confess ignorance of the human heart, its secret workings, and how strong its inclination is to practise self-deception.*

** The truth of this is found on all occasions where the interests or the passions of men are concerned, and was rather amusingly shown in many ways when the free-trade measures of Sir R. Peel were being carried through. Then every interest desired free-trade, except with reference to the articles produced by itself.*

No, Sir; it is not the heat of controversy, which has betrayed me in seeing the doctrine of Protection in this light, for, on the contrary, it was because I saw it in this point of view before the struggle commenced that I am thus engaged. Believe me that to extend somewhat our foreign commerce—a

consequential result which, however, is far from despicable—was never my governing motive; I believed, and I still believe, that property itself was concerned in the question; I believed, and I still believe, that our tariff of customs, owing to the principle which has given it birth, and the arguments by which it is defended, has made a breach in the very principle of property itself, through which all the rest of our legislation threatens to force itself. In considering this state of things, it seems to me that a Communism, the true effect and range of which, (I must say this to be just,) was not contemplated by its supporters, was on the point of overwhelming us. It seems to me that this particular species of Communism (for there are several kinds of it) flows logically from the arguments of the protectionists, and is involved when those arguments are pressed to their legitimate conclusion. It is upon this ground, therefore, that it seems to me of the utmost importance to meet the evil, for, fortified as it is by sophistical statements, and sanctioned by high authority, there is no hope of eradicating the error while such statements are permitted to take possession of and to distract the mind of the public. It is thus that we view the matter at Bordeaux, Paris, Marseilles, Lyons, and elsewhere, where we have organized the free-trade association. Commercial freedom, considered by itself, is without doubt a great blessing to the people; but if we had only this object in view, our body should have been named the *Association for Commercial Freedom*, or, more accurately, *for the Gradual Reform of the Tariffs*. But the word 'free-trade' implies the *free disposal of the produce of labour*, in other terms '*property*' and it is for this reason that we have preferred it. We knew, indeed, that the term would give rise to many difficulties. It affirmed a principle, and from that moment all the supporters of the opposite one ranged themselves against us. More than this, it was extremely objectionable, even to some of those who were the most disposed to second us, that is to say, to merchants and traders more engaged in reforming the Customs than in overthrowing Communism. Havre, while sympathizing with our views, refused to enlist under our banner. On all sides I was told, 'Let us obtain without loss of time some modification of our tariff, without publishing to the world our extreme pretensions.' I replied, 'If you have only that in view, exert your influence through your chambers of commerce.' To this they answered, 'The word free-trade frightens people, and retards our success.' Nothing is more true; but I would derive even from the terror inspired by this word my strongest arguments

for its adoption. The more disliked it is, say I, the more it proves that the true notion of property is obscured. The doctrine of Protection has clouded ideas, and confused and false ideas have in their turn supported Protection. To obtain by surprise, or with the consent of the Government, an accidental amelioration of the tariff may modify an effect, but cannot destroy a cause. I retain, then, the word *Free-trade*, not in the mere spirit of opposition, but still, I admit, because of the obstacles it creates or encounters—obstacles which, while they betray the mischief at work, bear along with them the certain proof, that the very foundation of social order was threatened.

It is not sufficient to indicate our views by a word; they should be defined. This has been done, and I here transcribe, as a programme, the first announcement or manifesto of this association.

'When uniting for the defence of a great cause, the undersigned feel the necessity of declaring their creed: of proclaiming the *design, the province, the means and the principles of their association.*

'Exchange is a natural right, like property. Every one who has made or acquired any article should have the option either to apply it immediately to his own use, or to transfer it to any one, whomsoever he may be, who may consent to give him something he may prefer to it in exchange. To deprive him of this power when he makes no use of it contrary to public order or morality, and solely to gratify the convenience of another, is to legalise a robbery—to violate the principle of justice.

'Again, it is to violate the conditions of social order—for what true social order can exist in the midst of a community, in which each individual interest, aided in this by law and public opinion, aims at success by the depression of all the others?

'It is to disown that providential superintendence which presides over human affairs, and made manifest by the infinite variety of climates, seasons, natural advantages and resources, benefits which God has so unequally distributed among men to unite them by commercial intercourse in the ties of a common brotherhood.

'It is to retard or counteract the development of public prosperity, since he who is not free to barter as he pleases, is not free to select his occupation, and is compelled to give an unnatural direction to his efforts, to his faculties, to his capital, and to those agents which nature has placed at his disposal.

'In short, it is to imperil the peace of nations, for it disturbs the relations which unite them, and which render wars improbable in proportion as they would be burdensome.

'The association has, then, for its object Free-trade.

'The undersigned do not contest that society has the right to impose on merchandise, which crosses the frontier, custom dues to meet national expenses, provided they are determined by the consideration of the wants of the Treasury alone.

'But as soon as a tax, losing its fiscal character, aims at the exclusion of foreign produce, to the detriment of the Treasury itself, in order to raise artificially the price of similar national products, and thus to levy contributions on the community for the advantage of a class, from that instant Protection, or rather robbery, displays itself, and *this* is the principle which the association proposes to eradicate from the public mind, and to expunge from our laws, independently of all reciprocity, and of the systems which prevail elsewhere.

'Though this association has for its object the complete destruction of the system of protection, it does not follow that it requires or expects such a reformation to be accomplished in a day, as by the stroke of a wand. To return even from evil to good, from an artificial state of things to one more natural, calls for the exercise of much prudence and precaution. To carry out the details belongs to the supreme power—the province of the association is to propagate the principle, and to make it popular.

'As to the means which the association may employ to accomplish its ends, it will never seek for any but what are legal and constitutional.

'Finally, the association has nothing to do with party politics. It does not advocate any particular interest, class or section of the country. It embraces the cause of eternal justice, of peace, of union, of free intercourse, of brotherhood among all men—the cause of public weal, which is identical in every respect with that of the *public consumer*.'

Is there a word in this programme which does not show an ardent wish to confirm and strengthen, or rather perhaps to re-establish, in the minds of men the idea of property, perverted, as it is, by the system of Protection? Is it not evident that the interest of commerce is made secondary to the interest of society generally? Remark that the tariff, in itself good or evil in the financial point of view, engages little of our attention. But, as soon as it acts

intentionally with a view to Protection, that is to say, as soon as it develops the principle of spoliation, and ignores, in fact, the right of property, we combat it, not as a tariff, but as a system. *It is there*, we say, that we must eradicate the principle from the public mind, in order to blot it from our laws.*

** As Mr. Porter says, in one of his excellent notes on M. Bastiat's work on Popular Fallacies, 'The true history of all progress in regard to great questions, involving change in social policy, is here indicated by M. Bastiat. It is in vain that we look for such change through the enlightenment of what should be the governing bodies. In this respect, all legislative assemblies, whether called a Chamber of Deputies or a House of Commons, are truly representatives of the public mind, never placing themselves in advance, nor lagging much behind the general conviction. This is not, indeed, a new discovery, but we are much indebted to Mr. Cobden and the leading members of the Anti-Corn-Law League for having placed it in a point of view so prominent that it can no longer be mistaken. Hereafter, the course of action is perfectly clear upon all questions that require legislative sanction. This can only be obtained through the enlightenment of the constituency; but when such enlightenment has been accomplished—when those mainly interested in bringing about the change have once formed their opinion in its favour, the task is achieved.'*

It will be asked, no doubt, why, having in view a general principle of this importance, we have confined the struggle to the merits of a particular question.

The reason of this, is simple. It is necessary to oppose association to association, to engage the interests of men, and thus draw volunteers into our ranks. We know well that the contest between the Protectionists and Free-traders cannot be prolonged without raising and finally settling all questions, moral, political, philosophical, and economical, connected with property. And since the Mimerel Club, in directing its efforts to one end, had weakened the principle of property, so we aimed at inspiring it with renewed vigour, in pursuing a course diametrically opposite.

But what matters it what I may have said or thought at other times? What matters it that I have perceived, or thought that I have perceived, a certain connexion between Protection and Communism? The essential thing is to prove that this connexion exists, and I proceed to ascertain whether this be so.

You no doubt remember the time when, with your usual ability, you drew from the lips of Monsieur Proudhon this celebrated declaration, 'Give me

the right of labour, and I will abandon the right of property.' M. Proudhon does not conceal that, in his eyes, these two rights are incompatible.

If property is incompatible with the right of labour, and if the right of labour is founded upon the same principle as Protection, what conclusion can we draw, but that Protection is itself incompatible with property? In geometry, we regard as an incontestable truth, that two things equal to a third are equal to each other.

Now it happens that an eminent orator, M. Billault, has thought it right to support at the tribune the right of labour. This was not easy, in the face of the declaration which escaped from M. Proudhon. M. Billault understood very well, that to make the state interfere to weigh in the balance the fortunes, and equalize the conditions, of men, tends towards Communism; and what did he say to induce the National Assembly to violate property and the principles thereof? He told you with all simplicity that he asked you to do what, in effect, you already do by your tariff. His aim does not go beyond a somewhat more extended application of the doctrines now admitted by you, and applied in practice. Here are his words:—

'Look at our custom-house tariff? By their prohibitions, their differential taxes, their premiums, their combinations of all kinds, it is society which aids, which supports, which retards or advances all the combinations of national labour; it not only holds the balance between French labour, which it protects, and foreign labour, but on the soil of France itself it is perpetually interfering between the different interests of the country. Listen to the perpetual complaints made by one class against another: see, for example, those who employ iron in their processes, complaining of the protection given to French iron over foreign iron; those who employ flax or cotton thread, protesting against the protection granted to French thread, in opposition to the introduction of foreign thread; and it is thus with all the others. Society (it ought to be said, the government) finds itself then forcibly mixed up with all these struggles, with all the perplexities connected with the regulation of labour; it is always actively interfering between them, directly and indirectly, and from the moment that the question of custom duties is broached, you will see that you will be, in spite of yourselves, forced to acknowledge the fact and its cause, and to take on yourself the protection of every interest.

'The necessity which is thus imposed on the government to interfere in the question of labour, should not, then, be considered an objection to the debt which society owes to the poor workmen.'

And you will remark well that in his arguments, M. Billault has not the least intention of being sarcastic. He is no Free-trader, intentionally disguised for the purpose of exposing the inconsistency of the Protectionists. No; M. Billault is himself a Protectionist, *bonâ fide*. He aims at equalizing our fortunes by law. With this view, he considers the action of the tariffs useful; and being met by an obstacle—the right of property—he leaps over it, as you do. The right of labour is then pointed out to him, which is a second step in the same direction. He again encounters the right of property, and again he leaps over it; but turning round, he is surprised to see you do not follow him. He asks the reason. If you reply—I admit in principle that the law may violate property, but I find it *inopportune* that this should be done under the particular form of the right of labour, M. Billault would understand you, and discuss with you the secondary question of expediency. But you raise up, in opposition to his views, the principle of property itself. This astonishes him; and he conceives that he is entitled to say to you—Do not act with inconsistency, and deny the right of labour on the ground of its infringement of the right of property, since you violate this latter right by your tariffs, whenever you find it convenient to do so. He might add, with some reason, by the protective tariffs you often violate the property of the poor for the advantage of the rich. By the right of labour, you would violate the property of the rich to the advantage of the poor. By what chance does it happen that your scruples stop short at the point they do?

Between you and M. Billault there is only one point of difference. Both of you proceed in the same direction—that of Communism: only you have taken but one step, and he has taken two. On this account the advantage, in my eyes at least, is on your side; but you lose it on the ground of logic.

For since you go along with him, though more slowly than he does, he is sufficiently well pleased to have you as his follower. This is an inconsistency which M. Billault has managed to avoid, but, alas! to fall himself also into a sad dilemma! M. Billault is too enlightened not to feel, indistinctly perhaps, the danger of each step that he takes in the path which ends in Communism. He does not assume the ridiculous position of the

champion of property, at the very moment of violating it; but how does he justify himself? He calls to his aid the favourite axiom of all who can reconcile two irreconcilable things—*There are no fixed principles*. Property, Communism—let us take a little from both, according to circumstances.

'To my mind, the pendulum of civilization which oscillates from the one principle to the other, according to the wants of the moment, but which always makes the greater progress if, after strongly inclining towards the absolute freedom of individual action, it fells back on the necessity of government interference.'

There is, then, no such thing as truth in the world. No principles exist, since *the pendulum ought to oscillate from one principle to the other, according to the wants of the moment*. Oh! metaphor, to what a point thou wouldst bring us, if allowed!

But as you have well said, in your place in the Assembly, one cannot discuss all parts of this subject at once, I will not at the present moment examine the system of Protection in the purely economic point of view. I do not inquire then whether, with regard to national wealth, it does more good than harm, or the reverse. The only point that I wish to prove is, that it is nothing else than a species of Communism. MM. Billault and Proudhon have commenced the proof, and I will try and complete it.

And first, What is to be understood by Communism? There are several modes, if not of realizing community of goods, at least of trying to do so. M. de Lamartine has reckoned four. You think that there are a thousand, and I am of your opinion. However, I believe that all these could be reduced under three general heads, of which one only, according to me, is truly dangerous.

First, it might occur to two or more men to combine their labour and their time. While they do not threaten the security, infringe the liberty, or usurp the property of others, neither directly nor indirectly, if they do any mischief, they do it to themselves. The tendency of such men will be always to attempt in remote places the realization of their dream. Whoever has reflected upon these matters knows these enthusiasts will probably perish from want, victims to their illusions. In our times, Communists of this description have given to their imaginary elysium the name of Icaria,* as if they had had a melancholy presentiment of the frightful end towards which they were hastening. We may lament over their blindness; we should try to

rescue them if they were in a state to hear us, but society has nothing to fear from their chimeras.

** This, as most of our readers are aware, is an imaginary country at the other side of the world, where a state of circumstances is supposed to exist productive of general happiness—moral and physical—to all. The chief creator of this modern Utopia, from which indeed the idea is confessedly taken, is M. Cabet, whose book was published during the year of the late revolution in France. It is meant to be a grave essay on possible things, but could only be considered so, we venture to think, in Paris, and only there in times of unusual excitement. The means by which M. Cabet and his followers suppose their peculiar society could be established and maintained, are beyond conception false, ludicrous, and puerile.*

M. Cabet was obliged to leave France for a grave offence, but found a refuge and no inconsiderable number of followers in America, where, by the side of much that is excellent and hopeful, flourishes, perhaps, under present circumstances, as a necessary parallel, many of the wild and exploded theories of the world.

Another form of Communism, and decidedly the coarsest, is this: throw into a mass all the existing property, and then share it equally. It is spoliation becoming the dominant and universal law. It is the destruction, not only of property, but also of labour and of the springs of action which induce men to work. This same Communism is so violent, so absurd, so monstrous, that in truth I cannot believe it to be dangerous. I said this some time ago before a considerable assembly of electors, the great majority of whom belonged to the suffering classes. My words were received with loud murmurs.

I expressed my surprise at it. 'What,' said they, 'dares M. Bastiat say that Communism is not dangerous? He is then a Communist! Well, we suspected as much, for Communists, Socialists, Economists, are all of the same order, as it is proved by the termination of the words.' I had some difficulty in recovering myself; but even this interruption proved the truth of my proposition. No, Communism is not dangerous, when it shows itself in its most naked form, that of pure and simple spoliation; it is not dangerous, because it excites horror.

I hasten to say, that if Protection can be and ought to be likened to Communism, it is not that which I am about to attack.

But Communism assumes a third form:—

To make the state interfere to, let it take upon itself to adjust profits and to equalize men's possessions by taking from some, without their consent, to give to others without any return, to assume the task of putting things on an equality by robbery, assuredly is Communism to the fullest extent. It matters not what may be the means employed by the state with this object, no more than the sounding names with which they dignify this thought. Whether they pursue its realization by direct or indirect means, by restriction or by impost, by tariffs or by the right of labour; whether they call it by the watchword of equality, of mutual responsibility, of fraternity, that does not change the nature of things; the violation of property is not less robbery because it is accomplished with regularity, order, and system, and under the forms of law.

I repeat that it is here, at this juncture, that Communism is really dangerous. Why? Because under this form we see it incessantly ready to taint everything. Behold the proof! One demands that the state should supply gratuitously to artisans, to labourers, the *instruments of labour*,* that is, to encourage them to take them from other artisans and labourers. Another wishes that the state should lend without interest; this could not be done without violating property. A third calls for gratuitous education to all degrees; gratuitous! that is to say, at the expense of the tax-payers.**

** By this phrase we believe is meant much more than the English words might indicate—the supplying all the capital necessary to start the artisan in the world.*

*** We think, with Adam Smith and most others, that education and religious instruction may fairly and properly, if the occasion requires, be excepted from this rule, on the ground that as they are most beneficial to the whole of society—their effects not stopping short with the persons receiving the immediate benefits—'they may, without injustice, be defrayed by the general contribution of the whole society.' We by no means say, however, that this public support should supersede voluntary contribution.*

A fourth requires that the state should support the associations of workmen, the theatres, the artists, See. But the means necessary for such support is so much money taken from those who have legitimately made it. A fifth is dissatisfied unless the state artificially raises the price of a particular product for the benefit of those who sell it; but it is to the detriment of those who buy. Yes, under this form, there are very few people who at one time or another would not be Communists. You are so yourself;

M. Billault is; and I fear that in France we are all so in some degree. It seems that the intervention of the state reconciles us to robbery, in throwing the responsibility of it on all the world; that is to say, on no one; and it is thus that we sport with the wealth of others in perfect tranquillity of conscience. That honest M. Tourret, one of the most upright of men who ever sat upon the ministerial bench, did he not thus commence his statement in favour of the scheme for the advancement of public money for agricultural purposes? 'It is not sufficient to give instruction for the cultivation of the arts. We must also supply the instruments of labour.' After this preamble, he submits to the National Assembly a proposition, the first heading of which runs thus:—

'First—There is opened, in the budget of 1849, in favour of the Minister of Agriculture and Commerce, a credit of ten millions, to meet advances to the proprietors and associations of proprietors of rural districts.' Confess that if this legislative language was rendered with exactness, it should have been:—

'The Minister of Agriculture and Commerce is authorized, during the year 1849, to take the sum of ten millions from the pocket of the labourers who are in great want of it, and *to whom it belongs*, to put it in the pocket of other labourers who are equally in want of it, and *to whom it does not belong*.'

Is not this an act of Communism, and if made general, would it not constitute the system of Communism?

The manufacturer, who would die sooner than steal a farthing, does not in the least scruple to make this request of the legislature—'Pass me a law which raises the price of my cloth, my iron, my coal, and enable me to overcharge my purchasers.' As the motive upon which he founds this demand is that he is not content with the profit, at which trade unfettered or free-trade would fix it, (which I affirm to be the same thing, whatever they may say,) so, on the other hand, as we are all dissatisfied with our profits, and disposed to call in the aid of the law, it is clear, at least to me, that if the legislature does not hasten to reply, 'That does not signify to us; we are not charged to violate property, but to protect it,' it is clear, I say, that we are in downright Communism. The machinery put in motion by the state to effect the object may differ from what we have indicated, but it has the same aim, and involves the same principle.

Suppose I present myself at the bar of the National Assembly, and say, 'I exercise a trade, and I do not find that my profits are sufficient: consequently I pray you to pass a law authorizing the tax-collectors to levy, for my benefit, only one centime upon each French family,' If the legislature grants my request, this could only be taken as a single act of legal robbery, which does not at this point merit the name of Communism. But if all Frenchmen, one after the other, made the same request, and if the legislature examined them with the avowed object of realizing the equality of goods, it is in this principle, followed by its effects, that I see, and that you cannot help seeing, Communism.

Whether, in order to realize its theory, the legislature employs custom-house officers or excise collectors, imposes direct or indirect taxes, encourages by protection or premiums, matters but little. Does it believe itself authorized to *take* and to *give* without compensation? Does it believe that its province is to regulate profits? Does it act in consequence of this belief? Do the mass of the public approve of it?—do they compel this species of action? If so, I say we are upon the descent which leads to Communism, whether we are conscious of it or not.

And if they say to me, the state never acts thus in favour of any one, but only in favour of some classes, I would reply—Then it has found the means of making Communism even worse than it naturally is.

I know, Sir, that some doubt is thrown on these conclusions by the aid of a ready confusion of ideas. Some administrative acts are quoted, very legitimate cases in their way, where the intervention of the state is as equitable as it is useful; then, establishing an apparent analogy between these cases, and those against which I protest, they will attempt to place me in the wrong, and will say to me—'As you can only see Communism in Protection, so you ought to see it in every case where government interferes.'

This is a trap into which I will not fall.

This is why I am compelled to inquire what is the precise circumstance which impresses on state intervention the communistic character.

What is the province of the state? What are the things which individuals ought to entrust to the Supreme Power? Which are those which they ought to reserve for private enterprise? To reply to these questions would require a

dissertation on political economy. Fortunately I need not do this for the purpose of solving the problem before us.

When men, in place of labouring for themselves individually, combine with others, that is to say, when they club together to execute any work, or to produce a result by an united exertion, I do not call that *Communism*, because I see nothing in this of its peculiar characteristic, *equalizing conditions by violent means*. The state *takes*, it is true, by taxes, but it *renders* service for them in return. It is a particular but legitimate form of that foundation of all society, *exchange*. I go still further. In intrusting a special service to be done by the state, it may be made beneficial, or otherwise, according to its nature and the mode in which it is effected. Beneficial, if by this means the service is made with superior perfection and economy, and the reverse on the opposite hypothesis: but in either case I do not perceive the principle of Communism. The proceeding in the first was attended with success; in the second, with failure, that is all; and if Communism is a mistake, it does not follow that every mistake is Communism.

Political economists are in general very distrustful on the question of the intervention of government. They see in it inconveniences of all sorts, a discouragement of individual liberty, energy, foresight, and experience, which are the surest foundations of society. It often happens, then, that they have to resist this intervention. But it is not at all on the same ground and from the same motive which makes them repudiate Protection. Our opponents cannot, therefore, fairly turn any argument against us in consequence of our predilections, expressed, perhaps, without sufficient caution for the freedom of private enterprise, nor say, 'It is not surprising that these people reject the system of Protection, for they reject the intervention of the state in everything.'

First, it is not true that we reject it in everything: we admit that it is the province of the state to maintain order and security, to enforce regard for person and property, to repress fraud and violence. As to the services which partake, so to speak, of an industrial character, we have no other rule than this: that the state may take charge of these, if the result is a saving of labour to the mass of the people. But pray, in the calculation, take into account all the innumerable inconveniences of labour monopolized by the state.

Secondly, I am obliged to repeat it, it is one thing to protest against any new interference on the part of the state on the ground that, when the calculation was made, it was found that it would be disadvantageous to do so, and that it would result in a national loss; and it is another thing to resist it because it is illegitimate, violent, unprincipled, and because it assigns to the government to do precisely what it is its proper duty to prevent and to punish. Now against the system called Protection these two species of objections may be urged, but it is against the principle last mentioned, fenced round as it is by legal forms, that incessant war should be waged.

Thus, for example, men would submit to a municipal council the question of knowing whether it would be better that each family in a town should go and seek the water it requires at the distance of some quarter of a league, or whether it is more advantageous that the local authority should levy an assessment to bring the water to the marketplace. I should not have any objection in *principle* to enter into the examination of this question. The calculation of the advantages and inconveniences for all would be the sole element in the decision. One might be mistaken in the calculation, but the error, which in this instance may involve the loss of property, would not be a systematic violation of it.

But when the mayor proposes to discourage one trade for the advantage of another, to prohibit boots for the advantage of the shoemaker, or something like it, then would I say to him, that in this instance he acts no longer on a calculation of advantages and inconveniences; he acts by means of an abuse of power, and a violent perversion of the public authority; I would say to him, 'You who are the depositary of power and of the public authority to chastise robbery, dare you apply that power and authority to protect it and render it systematic?'

Should the idea of the mayor prevail, if I see, in consequence of this precedent all the trading classes of the village bestirring themselves, to ask for favours at the expense of each other—if in the midst of this tumult of unscrupulous attempts I see them confound even the notion of property, I must be allowed to assume that, to save it from destruction, the first thing to do is to point out what has been iniquitous in the measure, which formed the first link of the chain of these deplorable events.

It would not be difficult, Sir, to find in your work passages which support my position and corroborate my views. To speak the truth, I might consult it

almost by chance for this purpose. Thus, opening the book at hap-hazard, I would probably find a passage condemning, either expressly or by implication, the system of Protection—proof of the identity of this system in principle with Communism. Let me make the trial. At page 283, I read:—

'It is, then, a grave mistake to lay the blame upon competition, and not to have perceived that if the people are the producers, they are also the consumers, and that receiving less on one side,' (which I deny, and which you deny yourself some lines lower down,) 'paying less on the other, there remains then, for the advantage of all, the difference between a system which restrains human activity, and a system which places it in its proper course, and inspires it with ceaseless energy.'

I defy you to say that this argument does not apply with equal force to foreign as to domestic competition. Let us try again. At page 325, we find:

'Men either possess certain rights, or they do not. If they do—if these rights exist, they entail certain inevitable consequences....

But more than this, they must be the same at all times; they are entire and absolute—past, present, and to come—in all seasons; and not only when it may please you to declare them to be, but when it may please the workmen to appeal to them.'

Will you maintain that an iron-master has an undefined right to hinder me for ever from producing indirectly two hundredweight of iron in my manufactory, for the sake of producing one hundred-weight in a direct manner in his own? This right, also, I repeat, either exists, or it does not. If it does exist, it must be absolute at all times and in all seasons; not only when it may please you to declare it to be so, but when it may please the iron-masters to claim its protection.

Let us again try our luck. At page 63, I read,—

'Property does not exist, if I cannot *give* as well as *consume* it.'

We say so likewise. 'Property does not exist, if I cannot *exchange* as well as *consume* it;' and permit me to add, that the *right of exchange* is at least as valuable, as important in a social point of view, as characteristic of property, as the *right of gift*. It is to be regretted, that in a work written for the purpose of examining property under all its aspects, you have thought it right to devote two chapters to an investigation of the latter right, which is

in but little danger, and not a line to that of exchange, which is so boldly attacked, even under the shelter of the laws.

Again, at page 47:—

'Man has an absolute property in his person and in his faculties. He has a derivative one, less inherent in his nature, but not less sacred, in what these faculties may produce, which embraces all that can be called the wealth of this world, and which society is in the highest degree interested in protecting; for without this protection there would be no labour; without labour, no civilization, not even the necessities of life—nothing but misery, robbery, and barbarism.'*

** This is a happy exposure of the inconsistency of M. Thiers. But we have had recently, and in the sitting of the late National Assembly, a curious example of the perversion of his extraordinary powers, in the speeches, full of false brilliancy, to the legislature of France, in condemnation of the principles of Free-trade. His statements were coloured, or altogether without foundation; the examples which he adduced, when looked into, told against him, and his logic was puerile. Yet he found an attentive and a willing auditory. Indeed, the prejudices of the French on this subject, mixed up as they are with so many influences operating on their vanity, are still inveterate; and it was, as it always has been, M. Thiers's object to reflect faithfully the national mind. His aim never was the noble one of raising and enlightening the views of his countrymen, but simply to gain an influence over their minds, by encouraging and echoing their prejudices and keeping alive their passions.*

Well, Sir, let us make a comment, if you do not object, on this text.

Like you, I see property at first in the free disposal of the person; then of the faculties; finally, of the produce of those faculties, which proves, I may say as a passing remark, that, from a certain point of view, Liberty and Property are identical.

I dare hardly say, like you, that property in the produce of our faculties is less inherent in our nature than property in these faculties themselves. Strictly speaking, that may be true; but whether a man is debarred from exercising his faculties, or deprived of what they may produce, the result is the same, and that result is called *Slavery*. This is another proof of the identity of the nature of liberty and property. If I force a man to labour for my profit, that man is my slave. He is so still, if, leaving him personal liberty, I find means, by force or by fraud, to appropriate to myself the fruits of his labour. The first kind of oppression is the more brutal, the second the

more subtle. As it has been remarked that free labour is more intelligent and productive, it may be surmised that the masters have said to themselves, 'Do not let us claim directly the powers of our slaves, but let us take possession of much richer booty—the produce of their faculties freely exercised, and let us give to this new form of servitude the engaging name of *Protection*.'

You say, again, that society is interested in rendering property secure. We are agreed; only I go further than you; and if by *society* you mean *government*, I say that its only province as regards property is to guarantee it in the most ample manner; that if it tries to measure and distribute it by that very act, government, instead of guaranteeing, infringes it. This deserves examination.

When a certain number of men, who cannot live without labour and without property, unite to support a *common authority*, they evidently desire to be able to labour, and to enjoy the fruits of their labour in all security, and not to place their faculties and their properties at the mercy of that authority. Even antecedent to all form of regular government, I do not believe that individuals could be properly deprived of the *right of defence*—the right of defending their persons, their faculties, and their possessions.

Without pretending, in this place, to philosophise upon the origin and the extent of the rights of governments—a vast subject, well calculated to deter me—permit me to submit the following idea to you. It seems to me that the rights of the state can only be the reduction into method of personal rights *previously existing*. I cannot, for myself, conceive *collective right* which has not its root in *individual right*, and does not presume it. Then, in order to know if the state is legitimately invested with a right, it is incumbent on us to ask whether this right dwells in the individual in virtue of his being and independently of all government.

It is upon this principle that I denied some time ago the right of labour. I said, since Peter has no right to take directly from Paul what Paul has acquired by his labour, there is no better foundation for this pretended right through the intervention of the state: for the state is but the *public authority* created by Peter and by Paul, at their expense, with a defined and clear object in view, but which never can render that just which is in itself not so. It is with the aid of this touchstone that I test the distinction between property secured and property controlled by the state. Why has the state the right to secure, even by force, every man's property? Because this right

exists previously in the individual. No one can deny to individuals the *right of lawful defence*—the right of employing force, if necessary, to repel the injuries directed against their persons, their faculties, and their effects. It is conceived that this individual right, since it resides in all men, can assume the collective form, and justify the employment of public authority. And why has the state no right to *equalize* or apportion worldly wealth? *Because, in order to do so, it is necessary to rob some in order to gratify others.* Now, as none of the thirty-five millions of Frenchmen have the right to take by force, under the pretence of rendering fortunes more equal, it does not appear how they could invest public authority with this right.

And remark, that the right of distributing* the wealth of individuals is destructive of the right which secures it. There are the savages. They have not yet formed a government; but each of them possesses the *right of lawful defence*. And it is easy to perceive that it is this right which will become the basis of legitimate public authority. If one of these savages has devoted his time, his strength, his intelligence to make a bow and arrows, and another wishes to take these from him, all the sympathies of the tribe will be on the side of the victim; and if the cause is submitted to the judgment of the elders, the robber will infallibly be condemned. From that there is but one step to the organization of public power. But I ask you—Is the province of this public power, at least its lawful province, to repress the act of him who defends his property in virtue of his abstract right, or the act of him who violates, contrary to that right, the property of another? It would be singular enough if public authority was based, not upon the rights of individuals, but upon their permanent and systematic violation! No; the author of the book before me could not support such a position. But it is scarcely enough that he could not support it; he ought perhaps to condemn it. It is scarcely enough to attack this gross and absurd Communism disseminated in low newspapers. It would perhaps have been better to have unveiled and rebuked that other and more audacious and subtle Communism, which, by the simple perversion of the just idea of the rights of government, insinuates itself into some branches of our legislation, and threatens to invade all.

** It is not easy here, and in some other places, to convey the exact meaning without using circuitous language.*

For, Sir, it is quite incontestable that by the action of the tariffs—by means of Protection—governments realize this monstrous thing of which I

have spoken so much. They abandon the right of lawful defence, previously existing in all men, the source and foundation of their own existence, to arrogate to themselves a *pretended right of equalizing the fortunes of all by means of robbery*, a right which, not existing before in any one, cannot therefore exist in the community.

But to what purpose is it to insist upon these general ideas? Why should I show the absurdity of Communism, since you have done so yourself (except as to one of its aspects, and, as I think, practically the most threatening) much better than it was in my power to effect?

Perhaps you will say to me that the principle of the system of Protection is not opposed to the principle of property. See, then, the means by which this system operates.

These are two: by the aid of premiums or bounties, or by restriction.

As to the first, that is evident. I defy any one to maintain that the end of the system of premiums, pushed to its legitimate conclusion, is not absolute Communism. Men work under protection of the public authority, as you say, charged to secure to each one his own—*suum cuique*. But in this instance the state, with the most philanthropic intentions in the world, undertakes a task altogether new and different, and, according to me, not only exclusive, but destructive of the first. It constitutes itself the judge of profits; it decides that this interest is not sufficiently remunerated, and that that is too much so; it stands as the distributor of fortunes, and makes, as M. Billault phrases it, the pendulum of civilization oscillate from the liberty of individual action to its opposite. Consequently it imposes upon the community at large a contribution for the purpose of making a present, under the name of premiums, to the exporters of a particular kind of produce. The pretext is to favour industry; it ought to say, *one* particular interest at the expense of *all* the others. I shall not stop to show that it stimulates the off-shoot at the expense of that branch which bears the fruit; but I ask you, on entering on this course, does it not justify every interest to come and claim a premium, if it can prove that the profits gained by it are not as much as those obtained by other interests? Is it not the duty of the state to listen, to entertain, to give ear to every demand, and to do justice between the applicants. I do not believe it; but those who do so, should have the courage to put their thoughts in this form, and to say—Government is

not charged to render property secure, but to distribute it equally. In other words, there is no such thing as property.

I only discuss here a question of principle. If I wished to investigate the subject of premiums for exportation, as shown in their economical effects, I could place them in the most ridiculous light, for they are nothing more than a gratuitous gift made by France to foreigners. It is not the seller who receives it, but the purchaser, in virtue of that law which you yourself have stated with regard to taxes; the consumer in the end supports all the charges, as he reaps all the advantages of production. Thus we are brought to the subject of premiums, one of the most mortifying and mystifying things possible. Some foreign governments have reasoned thus: 'If we raise our import duties to a figure equal to the premium paid by the tax-payers in France, it is clear that nothing will be changed as regards our consumers, for the net price will remain the same. The goods reduced by five francs on the French frontier, will pay five francs more at the German frontier; it is an infallible means of paying our public expenses out of the French Treasury.' But other governments, they assure me, have been more ingenious still. They have said to themselves, 'The premium given by France is properly a present she makes us; but if we raise the duty, no reason would exist why more of those particular goods should be imported than in past times; we ourselves place a limit on the generosity of these excellent French people; let us abolish, on the contrary, provisionally, these duties; let us encourage, for instance, an unusual introduction of cloths, since every yard brings with it an absolute gift.' In the first case, our premiums have gone to the foreign exchequer; in the second they have profited, but upon a larger scale, private individuals.

Let us pass on to restriction.

I am a workman—a joiner, for example—I have a little workshop, tools, some materials. All these things incontestably belong to me, for I have made them, or, which comes to the same thing, I have bought and paid for them. Still more, I have strong arms, some intelligence, and plenty of good will. On this foundation I endeavour to provide for my own wants and for those of my family. Remark, that I cannot directly produce anything which is useful to me, neither iron, nor wood, nor bread, nor wine, nor meat, nor stuffs, &c., but I can produce the *value* of them. Finally, these things must, so to speak, circulate under another form, from my saw and my plane. It is

my interest to receive honestly the largest possible quantity in exchange for the produce of my labour. I say honestly, because it is not my desire to infringe on the property or the liberty of any one. But I also demand that my own property and liberty be held equally inviolable. The other workmen and I, agreed upon this point, impose upon ourselves some sacrifices; we give up a portion of our labour to some men called public *functionaries*, because theirs is the special *function* to secure our labour and its produce from every injury that might befall either from within or from without.

Matters being thus arranged, I prepare to put my intelligence, my arms, my saw, and plane into activity. Naturally my eyes are always fixed on those things necessary to my existence, and which it is my duty to produce indirectly in creating what is equal to them in *value*. The problem is, that I should produce them in the most advantageous manner possible. Consequently I look at *values* generally, or what, in other words, may be called the current or market price of articles. I am satisfied, judging from these materials in my possession, that my means for obtaining the largest quantity possible of fuel, for example, with the smallest possible quantity of labour, is to make a piece of furniture, to send it to a Belgian, who will give me in return some coal.

But there is in France a workman who extracts coal from the earth. Now, it so happens that the officials, whom the miner and I *contribute* to pay for preserving to each of us his freedom of labour, and the free disposal of its produce (which is property), it so happens, I say, that these officials have become newly enlightened and assumed other duties. They have taken it into their heads to compare my labour with that of the miner. Consequently, they have forbidden me to warm myself with Belgian fuel: and when I go to the frontier with my piece of furniture to receive the coal, I find it prohibited from entering France, which comes to the same thing as if they prohibited my piece of furniture from going out. I then reason with myself—if we had never paid the government in order to save us the trouble of defending our own property, would the miner have had the right to go to the frontier to prohibit me from making an advantageous exchange, on the ground that it would be better for him that this exchange should not be effected? Assuredly not. If he had made so unjust an attempt, we would have joined issue on the spot, he, urged on by his unjust pretensions, I, strong in my right of legitimate defence.

We have appointed and paid a public officer for the special purpose of preventing such contests. How does it happen, then, that I find the miner and him concurring in restraining my liberty and hampering my industry, in limiting the field of my exertions? If the public officer had taken my part, I might have conceived his right; he would have derived it from my own; for lawful defence is, indeed, a right. But on what principle should he aid the miner in his injustice? I learn, then, that the public officer has changed his nature. He is no longer a simple mortal invested with rights delegated to him by other men, who, consequently, possess them. No. He is a being superior to humanity, drawing his right from himself, and, amongst these rights, he arrogates to himself that of calculating our profits, of holding the balance between our various circumstances and conditions. It is very well, say I; in that case, I will overwhelm him with claims and demands, while I see a richer man than myself in the country. He will not listen to you, it may be said to me, for if he listen to you, he will be a Communist, and he takes good care not to forget that his duty is to secure properties, not to destroy them.

What disorder, what confusion in facts; but what can you expect when there is such disorder and confusion in ideas? You may have resisted Communism vigorously in the abstract; but while at the same time you humour, and support, and foster it in that part of our legislation which it has tainted, your labours will be in vain. It is a poison, which, with your consent and approbation, has glided into all our laws and into our morals, and now you are indignant that it is followed by its natural consequences.

Possibly, Sir, you will make me one concession; you will say to me, perhaps, the system of Protection rests on the principle of Communism. It is contrary to right, to property, to liberty; it throws the government out of its proper road, and invests it with arbitrary powers, which have no rational origin. All this is but too true; but the system of Protection is useful; without it the country, yielding to foreign competition, would be ruined.

This would lead us to the examination of Protection in the economical point of view. Putting aside all consideration of justice, of right, of equity, of property, of liberty, we should have to resolve the question into one of pure utility, the money question, so to speak; but this, you will admit, does not properly fall within my subject. Take care that, availing yourself of expediency in order to justify your contempt of the principle of right is as if

you said, 'Communism or spoliation, condemned by justice, can, nevertheless, be admitted as an expedient,' and you must admit that such an avowal is replete with danger.

Without seeking to solve in this place the economical problem, allow me to make one assertion. I affirm that I have submitted to arithmetical calculation the advantages and the inconveniences of Protection, from the point of view of mere wealth, and putting aside all higher considerations. I affirm, moreover, that I have arrived at this result: that all restrictive measures produce one advantage and two inconveniences, or, if you will, one profit and two losses, each of these losses equal to the profit, from which results one pure distinct loss, which circumstance brings with it the encouraging conviction, that in this, as in many other things, and I dare say in all, expediency and justice agree.

This is only an assertion, it is true, but it can be supported by proofs of mathematical accuracy.*

** What M. Bastiat here asserts is unquestionably true. For it has often been shown, and may readily be shown, that the importation of foreign commodities, in the common course of traffic, never takes place except when it is, economically speaking, a national good, by causing the same amount of commodities to be obtained at a smaller cost of labour and capital to the country. To prohibit, therefore, this importation, or impose duties which prevent it, is to render the labour and capital of the country less efficient in production than they would otherwise be; and compel a waste of the difference between the labour and capital necessary for the home production of the commodity, and that which is required for producing the things with which it can be purchased from abroad. The amount of national loss thus occasioned is measured by the excess of the price at which the commodity is produced over that at which it could be imported. In the case of manufactured goods, the whole difference between the two prices is absorbed in indemnifying the producers for waste of labour, or of the capital which supports that labour. Those who are supposed to be benefited—namely, the makers of the protected article, (unless they form an exclusive company, and have a monopoly against their own countrymen, as well as against foreigners,) do not obtain higher profits than other people. All is sheer loss to the country as well as to the consumer. When the protected article is a product of agriculture—the waste of labour not being incurred on the whole produce, but only on what may be called the last instalment of it—the extra price is only in part an indemnity for waste, the remainder being a tax paid to the landlords.—J. S. Mill*

What causes public opinion to be led astray upon this point is this, that the profit produced by Protection is palpable—visible, as it were, to the

naked eye, whilst of the two equal losses which it involves, one is distributed over the mass of society, and the existence of the other is only made apparent to the investigating and reflective mind.

Without pretending to bring forward any proof of the matter here, I may be allowed, perhaps, to point out the basis on which it rests.

Two products, A and B, have an original value in France, which I may denominate 50 and 40 respectively. Let us admit that A is not worth more than 40 in Belgium. This being supposed, if France is subjected to the protective system, she will have the enjoyment of A and B in the whole as the result of her efforts, a quantity equal to 90, for she will, on the above supposition, be compelled to produce A directly. If she is free, the result of her efforts, equal to 90, will be equal: 1st, to the production of B, which she will take to Belgium, in order to obtain A; 2ndly, to the production of another B for herself; 3rdly, to the production of C.

It is that portion of disposable labour applied to the production of C in the second case, that is to say, creating new wealth equal to 10, without France being deprived either of A or of B, which makes all the difficulty. In the place of A put iron; in the place of B, wine, silk, and Parisian articles; in the place of C put some new product not now existing. You will always find that restriction is injurious to national prosperity.

Do you wish to leave this dull algebra? So do I. To speak of facts, therefore, you will not deny that if the prohibitory system has contrived to do some good to the coal trade, it is only in raising the price of the coal. You will not, moreover, deny that this excess of price from 1822 to the present time has only occasioned a greater expense to all those who use this fuel—in other words, that it represents a loss. Can it be said that the producers of coal have received, besides the interest of their capital and the ordinary profits of trade, in consequence of the protection afforded them, an extra gain equivalent to that loss? It would be necessary that Protection, without losing those unjust and Communistic qualities which characterize it, should at least be *neuter* in the purely economic point of view. It would be necessary that it should at least have the merit of resembling simple robbery, which displaces wealth without destroying it. But you yourself affirm, at page 236, 'that the mines of Aveyron, Alais, Saint-Etienne, Creuzot, Anzin, the most celebrated of all, have not produced a revenue of four per cent, on the capital embarked in them.' It does not require

Protection that capital in France should yield four per cent. Where, then, in this instance, is the profit to counterbalance the above-mentioned loss?

This is not all. There is another national loss. Since by the relative rising of the price of fuel, all the consumers of coal have lost, they have been obliged to limit their expenses in proportion, and the whole of national labour has been necessarily discouraged to this extent. It is this loss which they never take into their calculation, because it does not strike their senses.

Permit me to make another observation, which I am surprised has not struck people more. It is that Protection applied to agricultural produce shows itself in all its odious iniquity with regard to farmers, and injurious in the end to the landed proprietors themselves.

Let us imagine an island in the South Seas where the soil has become the private property of a certain number of inhabitants.

Let us imagine upon this appropriated and limited territory an agricultural population always increasing or having a tendency to increase.

This last class will not be able to produce anything *directly* of what is indispensable to life. They will be compelled to give up their labour to those who have it in their power to offer in exchange maintenance, and also the materials for labour, corn, fruit, vegetables, meat, wool, flax, leather, wood, &c.

The interest of this class evidently is, that the market where these things are sold should be as extensive as possible. The more it finds itself surrounded by the greatest quantity of agricultural produce, the more of this it will receive for any given quantity of its own labour.

Under a free system, a multitude of vessels would be seen seeking food and materials among the neighbouring islands and continents, in exchange for manufactured articles. The cultivators of the land will enjoy all the prosperity to which they have a right to pretend; a just balance will be maintained between the value of manufacturing labour and that of agricultural labour.

But, in this situation, the landed proprietors of the island make this calculation—If we prevent the workmen labouring for the foreigners, and receiving from them in exchange subsistence and raw materials, they will be forced to turn to us. As their number continually increases, and as the competition which exists between them is always active, they will compete

for that share of food and materials which we can dispose of, after deducting what we require for ourselves, and we cannot fail to sell our produce at a very high price. In other words, the balance in the relative value of their labour and of ours will be disturbed. We shall be able to command a greater share in the result of their labour. Let us, then, impose restrictions on that commerce which inconveniences us; and to enforce these restrictions, let us constitute a body of functionaries, which the workmen shall aid in paying.

I ask you, would not this be the height of oppression, a flagrant violation of all liberty, of the first and the most sacred principles of property?

However, observe well, that it would not perhaps be difficult for the landed proprietors to make this law received as a benefit by the labourer. They would say to the latter:

'It is not for us, honest people, that we have made it, but for you. Our own interests touch us little; we only think of yours. Thanks to this wise measure, agriculture prospers; we proprietors shall become rich, which will, at the same time, put it in our power to support a great deal of labour, and to pay you good wages; without it, we shall be reduced to misery—and what will become of you? The island will be inundated with provisions and importations from abroad; your vessels will be always afloat—what a national calamity! Abundance, it is true, will reign all round you, but will you share in it? Do not imagine that your wages will keep up and be raised, because the foreigner will only augment the number of those who overwhelm you with their competition. Who can say that they will not take it into their heads to give you their produce for nothing? In this case, having neither labour nor wages, you will perish of want in the midst of abundance. Believe us; accept our regulations with gratitude. Increase and multiply. The produce which will remain in the island, over and above what is necessary for our own consumption, will be given to you in exchange for your labour, which by this means you will be always secure of. Above all, do not believe that the question now in debate is between you and us, or one in which your liberty and your property are at stake. Never listen to those who tell you so. Consider it as certain that the question is between you and the foreigner—this barbarous foreigner—and who evidently wishes to speculate upon you; making you perfidious proffers of intercourse, which you are free either to accept or to refuse.'

It is not improbable that such a discourse, suitably seasoned with sophisms upon cash, the balance of trade, national labour, agriculture encouraged by the state, the prospect of a war, &c., &c., would obtain the greatest success, and that the oppressive decree would obtain the sanction of the oppressed themselves, if they were consulted. This has been, and will be so again.*

** The ease with which the body of the people—the consumers—are deceived by statements and arguments such as are given in the text is remarkable. The principal reason, perhaps, is, that men are disposed at first to regard themselves as producers rather than as consumers. They imagine that the advantages of Protection, if applied to their own case, would be incontestable; and, being unable consistently to deny that their neighbours are equally entitled to the same favour, a general clamour for Protection against foreign competition arises. While they fail to perceive the absurdity of universal Protection and its fallacy, or that it would be more for their interests to be able to dispose of a larger quantity of their productions, though perhaps at a reduced cost, than a smaller quantity in a market narrowed, as it must be, by the Protection which it receives.*

However, the true position of the case is now, we hope, firmly established in England, and this is chiefly due to the recent able, full, and free discussions which have resulted in our existing Free-trade system. And we confidently anticipate the day when the people of the Continent, and of America, will, through the same processes of reasoning and reflection, and influenced by our example, arrive at the same result as ourselves.

But the prejudices of proprietors and labourers do not change the nature of things. The result will be, a population miserable, destitute, ignorant, ill-conditioned, thinned by want, illness, and vice. The result will then be, the melancholy shipwreck, in the public mind, of all correct notions of right, of property, of liberty, and of the true functions of the state.

And what I should like much to be able to show here is, that the mischief will soon ascend to the proprietors themselves, who will have led the way to their own ruin by the ruin of the general consumer, for in that island they will see the population, more and more debased, resort to the inferior species of food. Here it will feed on chesnuts, there upon maize, or again upon millet, buckwheat, oats, potatoes. It will no longer know the taste of corn or of meat. The proprietors will be surprised to see agriculture decline. They will in vain exert themselves and ring in the ears of all,—'Let us raise

produce; with produce, there will be cattle; with cattle, manure; with manure, corn.' They will in vain create new taxes, in order to distribute premiums to the producers of grass and lucern; they will always encounter this obstacle—a miserable population, without the power of paying for food, and, consequently, of giving the first impulse to this succession of causes and effects. They will end by learning, to their cost, that it is better to have competition in a rich community, than to possess a monopoly in a poor one.

This is why I say, not only is Protection Communism, but it is Communism of the worst kind. It commences by placing the faculties and the labour of the poor, their only property, at the mercy of the rich; it inflicts a pure loss on the mass, and ends by involving the rich themselves in the common ruin. It invests the state with the extraordinary right of taking from those who have little, to give to those who have much; and when, under the sanction of this principle, the dispossessed call for the intervention of the state to make an adjustment in the opposite direction, I really do not see what answer can be given. In all cases, the first reply and the best would be, to abandon the wrongful act.

But I hasten to come to an end with these calculations. After all, what is the position of the question? What do we say, and what do you say? There is one point, and it is the chief, upon which we are agreed: it is, that the intervention of the legislature in order to equalize fortunes, by taking from some for the benefit of others, is *Communism*—it is the destruction of all labour, saving, and prosperity; of all justice; of all social order.

You perceive that this fatal doctrine taints, under every variety of form, both journals and books: in a word, that it influences the speculations and the doctrines of men, and here you attack it with vigour.

For myself, I believe that it had previously affected, with your assent and with your assistance, legislation and practical statesmanship, and it is there that I endeavour to counteract it.

Afterwards, I made you remark the inconsistency into which you would fall, if, while resisting Communism when speculated on, you spare, or much more encourage, Communism when acted on.

If you reply to me, 'I act thus because Communism, as existing through tariffs, although opposed to liberty, property, justice, promotes, nevertheless, the public good, and this consideration makes me overlook all

others'—if this is your answer, do you not feel that you ruin beforehand all the success of your book, that you defeat its object, that you deprive it of its force, and give your sanction, at least upon the philosophical and moral part of the question, to Communism of every shade?

And then, sir, can so clear a mind as yours admit the hypothesis of a fundamental antagonism between what is useful and what is just? Shall I speak frankly? Rather than hazard an assertion so improbable, so impious, I would rather say, 'Here is a particular question in which, at the first glance, it seems to me that utility and justice conflict. I rejoice that all those who have passed their lives in investigating the subject think otherwise. Doubtless I have not sufficiently studied it.' I have not sufficiently studied it! Is it, then, so painful a confession, that, not to make it, you would willingly run into the inconsistency even of denying the wisdom of those providential laws which govern the development of human societies? For what more formal denial of the Divine wisdom can there be, than to pronounce that justice and utility are essentially incompatible! It has always appeared to me, that the most painful dilemma in which an intelligent and conscientious mind can be placed, is when it conceives such a distinction to exist. In short, which side to espouse—what part to take in such an alternative? To declare for utility—it is that to which men incline who call themselves practical. But unless they cannot connect two ideas, they will unquestionably be alarmed at the consequences of robbery and iniquity reduced to a system. Shall we embrace resolutely, come what may, the cause of justice, saying—Let us do what is our duty, in spite of everything. It is to this that honest men incline; but who would take the responsibility of plunging his country and mankind into misery, desolation and destruction? I defy any one, if he is convinced of this antagonism, to come to a decision.

I deceive myself—they will come to a decision; and the human heart is so formed, that it will place interest before conscience. Facts prove this; since, wherever they have believed the system of Protection to be favourable to the well-being of the people, they have adopted it, in spite of all considerations of justice; but then the consequences have followed. Faith in property has vanished. They have said, like M. Billault, since property has been violated by Protection, why should it not be by the right of labour? Some, following M. Billault, will take a further step; and others, one still more extreme, until Communism is established.

Good and sound minds like yours are terrified by the rapidity of the descent. They feel compelled to draw back—they do, in fact, draw back, as you have done in your book, as regards the protective system, which is the first start, and the sole practical start, of society upon the fatal declivity; but in the face of this strong denial of the right of property, if, instead of this maxim of your book, 'Rights either exist, or they do not; if they do, they involve some absolute consequences'—you substitute this, 'Here is a particular case where the national good calls for the sacrifice of right;' immediately, all that you believe you have put with force and reason in this work, is nothing but weakness and inconsistency.

This is why, Sir, if you wish to complete your work, it will be necessary that you should declare yourself upon the protective system; and for that purpose it is indispensable to commence by solving the economical problem; it will be necessary to be clear upon the pretended utility of this system. For, to suppose even that I extract from you its sentence of condemnation, on the ground of justice, that will not suffice to put an end to it. I repeat it—men are so formed, that when they believe themselves placed between *substantial good* and *abstract Justice*, the cause of justice runs a great risk. Do you wish for a palpable proof of this? It is that which has befallen myself.

When I arrived in Paris, I found myself in the presence of schools called Democratical and Socialist, where, as you know, they make great use of the words, *principle, devotion, sacrifice, fraternity, right, union*. Wealth is there treated *de haut en bas*, as a thing, if not contemptible at least secondary, so far, that because we consider it to be of much importance, they treat us as cold economists, egotists, selfish, shopkeepers, men without compassion, ungrateful to God for anything save vile self. Good! you say to me; these are noble hearts, with whom I have no need to discuss the economical question, which is very subtle, and requires more attention than the Parisian newspaper-writers and their readers can in general bestow on a study of this description. But with them the question of wealth will not be an obstacle; either they will take it on trust, on the faith of Divine wisdom, as in harmony with justice, or they will sacrifice it willingly without a thought, for they have a passion for self-abandonment. If, then, they once acknowledge that Free-trade is, in the abstract, right, they will resolutely enrol themselves under its banner. Consequently, I address my appeal to them. Can you guess their reply? Here it is:—

'Your Free-trade is a beautiful theory. It is founded on right and justice; it realizes liberty; it consecrates property; it would be followed by the union of nations—the reign of peace and of good-will amongst men. You have reason and principle on your side; but we will resist you to the utmost, and with all our strength, because foreign competition would be fatal to our national industry.'

I take the liberty of addressing this reply to them:—

'I deny that foreign competition would be fatal to national industry. If it was so, you would be placed in every instance between your interest—which, according to you, is on the side of the restriction—and justice, which, by your confession, is on the side of freedom of intercourse! Now when I, the worshipper of the golden calf, warn you that the time has arrived to make your own choice, whence comes it that you, the men of self-denial, cling to self-interest, and trample principle under foot? Do not, then, inveigh so much against a motive, which governs you as it governs other men? Such is the experience which warns me that it is incumbent on us, in the first place, to solve this alarming problem: Is there harmony or antagonism between justice and utility? and, in consequence, to investigate the economical side of the protective system; for since they whose watchword is Fraternity, themselves yield before an apprehended adversity, it is clear that this proceeds from no doubt in the truth of the cause of universal justice, but that it is an acknowledgment of the existence and of the necessity of self-interest, as an all-powerful spring of action, however unworthy, abject, contemptible, and despised it may be deemed.

It is this which has given rise to a work, in two small volumes, which I take the liberty of sending you with the present one, well convinced, Sir, that if, like other political economists, you judge severely of the system of Protection on the ground of morality, and if we only differ as far as concerns its utility, you will not refuse to inquire, with some care, if these two great elements of substantial progress agree or disagree.

This harmony exists—or, at least, it is as clear to me as the light of the sun that it does. May it reveal itself to you! It is, then, by applying your talents, which have so remarkable an influence on others, to counteract Communism in its most dangerous shape, that you will give it a mortal blow.

See what passes in England. It would seem that if Communism could have found a land favourable to it, it ought to have been the soil of Britain. There, the feudal institutions, placing everywhere in juxtaposition extreme misery and extreme opulence, should have prepared the minds of men for the reception of false doctrines. But notwithstanding this, what do we see? Whilst the Continent is agitated, not even the surface of English society is disturbed. Chartism has been able to take no root there. Do you know why? Because the league or association which, for ten years discussed the system of Protection, only triumphed by placing the right of property on its true principles, and by pointing out and defining the proper functions of the state.*

** This is a well-earned tribute, both to the people of England, and to the results of the exertions of the League and of Sir R. Peel. There can be no doubt that the calmness of this country, during the late agitations of Europe, was very much due to the contentment which followed on the abolition of the corn-laws, and on the reduction and simplification of the tariff. To this must be added the conviction (though the process is sometimes sufficiently slow), that their wishes, when clearly indicated, find expression and attention in the legislature, and that things are working on to a great though gradual improvement. The inhabitants of this kingdom had the practical good sense to perceive the progress made, and the security they had that the future would not be barren, and they refused to imperil these substantial advantages in favour of mere theories and of experiments, the effects of which no human wit could foresee.*

Assuredly, if to unmask Protectionism is to aim a blow at Communism in consequence of their close connexion, one might also destroy both, by adopting a course the converse of the above. Protection would not stand for any length of time before a good definition of the right of property. Also, if anything has surprised and rejoiced me, it is to see the Association for the Defence of Monopolies devote their resources to the propagation of your book. It is an encouraging sight, and consoles me for the inutility of my past efforts. This resolution of the Mimerel Committee will doubtless oblige you to add to the editions of your work. In this case, permit me to observe to you that, such as it is, it presents a grave deficiency. In the name of science, in the name of truth, in the name of the public good, I adjure you to supply it; and I warn you that the time has come when you must answer these two questions:

First, Is there an incompatibility in principle between the system of Protection and the right of property?

Secondly, Is it the function of the government to guarantee to each the free exercise of his faculties, and the free disposal of the fruits of his labour—that is to say, property—or to take from one to give to the other, so as to weigh in the balance profits, contingencies, and other circumstances?

Ah! Sir, if you arrive at the same conclusions as myself—if, thanks to your talents, to your fame, to your influence, you can imbue the public mind with these conclusions, who can calculate the extent of the service which you will render to French society? We would see the state confine itself within its proper limits, which is, to secure to each the exercise of his faculties, and the free disposition of his possessions. We would see it free itself at once, both from its present vast but unlawful functions, and from the frightful responsibility which attaches to them. It would confine itself to restraining the abuses of liberty, which is to realize liberty itself! It would secure justice to all, and would no longer promise prosperity to any one. Men would learn to distinguish between what is reasonable, and what is puerile to ask from the government. They would no longer overwhelm it with claims and complaints; no longer lay their misfortunes at its door, or make it responsible for their chimerical hopes; and, in this keen pursuit of a prosperity, of which it is not the dispenser, they would no longer be seen, at each disappointment, to accuse the legislature and the law, to change their rulers and the forms of government, heaping institution upon institution, and ruin upon ruin. They would witness the extinction of that universal fever for mutual robbery, by the costly and perilous intervention of the state. The government, limited in its aim and responsibility, simple in its action, economical, not imposing on the governed the expense of their own chains, and sustained by sound public opinion, would have a solidity which, in our country, has never been its portion; and we would at last have solved this great problem—*To close for ever the gulf of revolution.*

THE END.

*** END OF THE PROJECT GUTENBERG EBOOK PROTECTION
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